

Franciscus Dylan Rosario,  
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,**  
**PLAINTIFF,**

**v.**

CSAA Insurance Exchange;  
Carbone, Smith & Koyama, LLP;  
Michael R. Chambers;  
Phillips, Spallas & Angstadt LLP;  
Priya D. Navaratnasingham;  
Alberto Reyna;  
and DOES 1 through 20, inclusive;  
**DEFENDANTS**

**Case No.: CGC-25-631801**  
**(Related: CGC-21-594102)**

**REQUEST FOR JUDICIAL NOTICE**  
**(ISO LEAVE TO FILE TAC)**

(Evid. Code, §§ 452, 453)

**I. COURT RECORDS — EVIDENCE CODE § 452(D)**  
**A. FROM THE UNDERLYING ACTION (CGC-21-594102)**

| Exhibit | Document                                                  | Date        | Relevance               |
|---------|-----------------------------------------------------------|-------------|-------------------------|
| A       | Substitution of Attorney<br>(Transaction ID<br>#69953800) | May 4, 2023 | File transfer CSK → PSA |

| Exhibit | Document                                                       | Date          | Relevance                                          |
|---------|----------------------------------------------------------------|---------------|----------------------------------------------------|
| B       | Motions in Limine Nos. 6 & 17                                  | Jan. 17, 2025 | “Not produced” / “no idea” representations         |
| C       | Hearing Transcript, Jan. 27, 2025 (excerpts)                   | Jan. 27, 2025 | MIL rulings; “never received” denials              |
| D       | Hearing Transcript, Feb. 18, 2025 (excerpts, pp. 139–141, 181) | Feb. 18, 2025 | Jessup testimony; “news to me”; continuance denial |
| E       | Hearing Transcript, Feb. 28, 2025 (pp. 291–294)                | Feb. 28, 2025 | Officer-of-the-court reliance; burden-shift        |
| F       | Reporter’s Transcript Vol. 7, p. 213, ll. 13–15                | Apr. 16, 2025 | “Provided by Dolan” admission                      |
| G       | Reporter’s Transcript Vol. 8, p. 108                           | Apr. 17, 2025 | Abdelhalim authentication                          |
| H       | Judgment                                                       | Apr. 25, 2025 | Judgment to be vacated                             |

## **B. FROM THIS ACTION (CGC-25-631801)**

| Exhibit | Document                     | Date          | Relevance              |
|---------|------------------------------|---------------|------------------------|
| I       | Second Amended Complaint     | (on file)     | Operative pleading     |
| J       | Defendants’ Motion to Strike | Apr. 22, 2026 | Objections being cured |

## **C. COURT OF APPEAL**

| Exhibit | Document                              | Relevance                               |
|---------|---------------------------------------|-----------------------------------------|
| K       | Notice of Appeal, Case<br>No. A173827 | Pending appeal (instructional<br>error) |

## II. CSAA DENIAL LETTER — EVIDENCE CODE § 452(H)

| Exhibit | Document                                          | Date          | Relevance                                   |
|---------|---------------------------------------------------|---------------|---------------------------------------------|
| L       | CSAA Denial Letter<br>(Claim<br>No. 1004-09-1054) | Feb. 25, 2021 | Precipitous denial; Sarah<br>Rash signatory |

## III. STATUTES — EVIDENCE CODE § 452(A), (B)

| Exhibit | Statute                             | Relevance                       |
|---------|-------------------------------------|---------------------------------|
| M       | Bus. & Prof. Code §<br>6068(d)      | Duty not to mislead judge       |
| N       | Bus. & Prof. Code §<br>6128(a), (b) | Attorney deceit; treble damages |
| O       | Civ. Code § 1573                    | Constructive fraud              |
| P       | Civ. Code § 2338                    | Principal-agent liability       |
| Q       | Civ. Code § 3294                    | Punitive damages                |
| R       | CCP § 128.5                         | Bad-faith sanctions             |
| S       | CCP § 436                           | Motion to strike                |
| T       | CCP § 473                           | Leave to amend                  |

| Exhibit | Statute                                    | Relevance           |
|---------|--------------------------------------------|---------------------|
| U       | CCP § 2023.030                             | Discovery sanctions |
| V       | Evid. Code § 452(a), (b),<br>(c), (d), (h) | Judicial notice     |
| W       | Evid. Code § 413                           | Willful suppression |

#### IV. CALIFORNIA SUPREME COURT OPINIONS — EVIDENCE CODE § 452(A)

Plaintiff requests judicial notice of the following published California Supreme Court opinions, which supply the doctrinal spine of the TAC (see TAC §I.4.5, ¶ 7.5, ¶ 15.5, ¶ 26.5, ¶ 27.5, ¶ 33, ¶¶ 34.5–34.6, §IV.5.5, and the Eighth Cause of Action). Certified copies from the cached opinion library are lodged for the Court’s convenience with pincite tabs at the operative holdings.

| Exhibit | Opinion                                             | Key Pincite(s)                                                        | Local Path                                                                                          |
|---------|-----------------------------------------------------|-----------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------|
| X       | <u>Westphal v. Westphal</u> (1942)<br>20 Cal.2d 393 | 397 (extrinsic fraud = “prevented from exhibiting fully his case”)    | CASE-LAW-AND-STATUTES/opinions-pdf/Equity-Extrinsic-Fraud-cal-2d-vol20-p393-Westphal-v-Westphal.pdf |
| Y       | <u>Kulchar v. Kulchar</u> (1969) 1<br>Cal.3d 467    | 471 (“fair adversary hearing” = “primary right”); 472–473 (diligence) | CASE-LAW-AND-STATUTES/opinions-pdf/Demurrer-cal-3d-vol1-p467-Kulchar-v-Kulchar.pdf                  |

| Exhibit | Opinion                                               | Key Pincite(s)                                                                                                                                                                                          | Local Path                                                                                        |
|---------|-------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------|
| Z       | <u>In re Marriage of Modnick</u> (1983) 33 Cal.3d 897 | 905 (broad-concept extrinsic fraud); 907 (“never fairly before the court for adjudication”; “denial of the very existence”)                                                                             | CASE-LAW-AND-STATUTES/opinions-pdf/Equity-Extrinsic-Fraud-cal-3d-vol33-p897-Modnick-v-Modnick.pdf |
| AA      | <u>Estate of Sanders</u> (1985) 40 Cal.3d 607         | 614–616 (officer-of-court fiduciary breach converts conduct to extrinsic fraud; “effectively prevented . . . a fair adversary hearing,” quoting <u>Larrabee v. Tracy</u> (1943) 21 Cal.2d 645, 650–651) | CASE-LAW-AND-STATUTES/opinions-pdf/Equity-Extrinsic-Fraud-cal-3d-vol40-p607-Sanders-v-Sutton.pdf  |

Judicial notice of these opinions is mandatory under Evidence Code § 451(a) (“[t]he decisional . . . law of this state”), and, to the extent the Court views them as discretionary, they are proper subjects under § 452(a) upon Plaintiff’s § 453 request made here.

## V. LEGAL BASIS

### A. COURT RECORDS ARE PROPER SUBJECTS OF JUDICIAL NOTICE

Evidence Code § 452(d) permits judicial notice of “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.”

The documents listed as Exhibits A through K are records of the Superior Court of California, County of San Francisco, or the California Court of Appeal, and are therefore proper subjects of judicial notice. The Court may take judicial notice of the existence and contents of court records

1 but not of the truth of factual matters asserted therein. Sosinsky v. Grant (1992) 6 Cal.App.4th  
2 1548, 1564.

### 3 **B. FACTS NOT REASONABLY SUBJECT TO DISPUTE ARE PROPER** 4 **SUBJECTS**

5 Evidence Code § 452(h) permits judicial notice of “[f]acts and propositions that are not reasonably  
6 subject to dispute and are capable of immediate and accurate determination by resort to sources of  
7 reasonably indisputable accuracy.”

8 The CSAA denial letter (Exhibit L) is a document whose existence and contents are not reasonably  
9 subject to dispute.

### 10 **C. STATUTES ARE PROPER SUBJECTS OF JUDICIAL NOTICE**

11 Evidence Code § 452(a) permits judicial notice of “[t]he decisional, constitutional, and public  
12 statutory law of this state and of the United States.”

13 The statutes listed as Exhibits M through W are California statutes and are therefore proper subjects  
14 of mandatory judicial notice.

### 15 **D. JUDICIAL NOTICE IS MANDATORY UPON PROPER REQUEST**

16 Evidence Code § 453 provides: “The trial court shall take judicial notice of any matter specified in  
17 Section 452 if a party requests it and. . . [g]ives each adverse party sufficient notice of the request. . .  
18 to enable such adverse party to prepare to meet the request.”

19 Plaintiff has provided this request to all parties and has attached true and correct copies of the  
20 documents (or excerpts thereof) as exhibits.

### 21 **E. CAL. SUPREME COURT OPINIONS ARE MANDATORILY NOTICED** 22 **UNDER EVID. CODE § 451(A)**

23 Evidence Code § 451(a) makes judicial notice of “[t]he decisional . . . law of this state” mandatory  
24 and does not require formal request. The California Supreme Court opinions listed in Part IV  
25 — Westphal, Kulchar, Modnick, and Sanders — are published decisional law of the California  
26 Supreme Court and are therefore subject to mandatory judicial notice under § 451(a) without any  
27 further request. Plaintiff nevertheless lodges certified copies of these opinions with pincite tabs for

1 the convenience of the Court and to memorialize the pincites on which the TAC and Memorandum  
2 rely (TAC §I.4.5, ¶ 7.5, ¶ 15.5, ¶ 26.5, ¶ 27.5, ¶ 33, ¶¶ 34.5–34.6, §IV.5.5, Eighth Cause of Action;  
3 Memo §§ I.A–I.F, V.G).

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5 **VI. CONCLUSION**

6 For the foregoing reasons, Plaintiff respectfully requests that this Court take judicial notice of the  
7 documents identified above.

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8

9 **Dated:** \_\_\_\_\_

10 **FRANCISCUS DYLAN ROSARIO**

11 Plaintiff, In Pro Per

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Dated: April 22, 2026



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